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State of Minnesota
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STATE OF MINNESOTA | DISTRICT COURT

COUNTY OF DAKOTA | FIRST JUDICIAL DISTRICT
CASE TYPE: HOUSING

Lexington Flats, Limited Partnership,

Plaintiff,

vs.

Dena Sazama (dob 02/18/1967),
Bradley Crowe (dob 07/19/1967),
John Doe, Jane Doe,

Defendant.

COMPLAINT

Parties

1. Plaintiff is Lexington Flats, Limited Partnership. Plaintiff is a Landlord as that term is defined in Minn. Stat. § 504B.001, Subd. 7.

2. Defendants are Dena Sazama, Bradley Crowe. Defendant is a Residential Tenant as that term is defined in Minn. Stat. § 504B.001, Subd. 12.

The Lease

3. There is a written lease between the parties and it is attached to the Complaint as **Exhibit A**.

4. The address of the property in the Lease is 2977 Lexington Avenue South #104, in the City of Eagan, County of Dakota, State of Minnesota, Zip Code 55121.

5. The tenancy is affected by the low-income housing tax credit program administered through Minnesota Housing and the Long Term Homeless Housing Support (LTH) administered by The Experience of Neshama.

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Conditions Precedent

6. All necessary conditions precedent have been performed or have occurred.

7. Plaintiff has complied with Minn. Stat. § 504B.181 by:

   a. disclosing to tenant either in the rental agreement or otherwise in writing prior to the beginning of the tenancy the name and address of: 1) the person authorized to manage premises; and 2) an owner or agent authorized by owner to accept service of process and receive and give receipts for notice and demands, AND
   b. posting in a conspicuous place on the property a printed or typewritten notice containing the above information in the lease, OR
   c. the above information is known by or has been disclosed to the tenant not less than 30 days before the filing of this action because of communications from landlord.

Count 1: Eviction – Holding Over

8. The tenancy was terminated effective October 31, 2025, given to Plaintiff by Defendants' advocate on August 29, 2025.

9. The notice to vacate or notice to quit that terminated the tenancy is attached to this Complaint as **Exhibit B.**

10. Defendants remain in possession of the premises and have not vacated.

11. HUD 5382 is attached as **Exhibit C**.

12. Defendants' military status is unknown.

Request for Relief

1. Plaintiff seeks judgment against Defendant and an Order for possession of the property and the issuance of an immediate Writ of Recovery.

2. Plaintiff seeks all allowable costs and disbursements of the action.

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I declare under penalty of perjury that everything I have stated in this document is true and correct to the best of my knowledge and belief. Minn. Stat. § 358.116.

Dated: November 17, 2025

HANBERY & TURNER, P.A.

/s/ Douglass E. Turner
Douglass E. Turner, #0279948
33 South 6th St. Suite 4160
Minneapolis, MN 55402
Tele: (612) 353-4388
EM: hnc@hnclaw.com
Attorney for Plaintiff

MINNESOTA JUDICIAL BRANCH

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VELAIR PROPERTY MANAGEMENT

Lease Agreement

7645 Lyndale Ave. S., Suite 300
Minneapolis, MN 55423
612-243-3111

Occupant Leaseholder(s): (List all persons age 18 and older who will live in the Apartment/Townhome):
Dena Sazama
Bradley Crowe

Minor Aged Occupant(s):

Street Address of Rental Dwelling: 2977 Lexington Ave South
Apartment / Unit Number: 104
City: Eagan State: MN Zip Code: 55121

Move In Date:	11/21/2021	Prorated Rent:	$0.00
Date this lease starts:	11/01/2024	Date this lease ends:	10/31/2025 @ 12:00 Noon

Utility:	Gas	Water	Electricity	Heat	Telephone	Trash	Cable	Internet
Paid BY:	Owner	Owner	Occupant	Owner	Occupant	Owner	Occupant	Occupant

Non-Optional Fees
Apartment Monthly Rent $1218.00
Other ( ) $
Other ( ) $
Total Non-Optional Fees $0.00

Day Late Fee is Charged: 6th
Late Fee: $ 97.44
Late Fee is Equal to 8% of Rent

Optional Fees
Garage Rent $0.00
Storage Rent $0.00
Other ( ) $
Total Optional Fee: $0.00

Assigned Garage Parking: 18
Assigned Storage: n/a
Security Deposit: $1073.00

TOTAL MONTHLY RENT
(Non-Optional Fees +Optional Fees): $1218.00

Notice Period: **TWO FULL CALENDAR MONTHS**

Occupants acknowledge and agree to take every necessary precaution to guarantee these keys will not be misplaced. In the event they become lost, the occupants agree to indemnify and reimburse the property for lost keys at the cost listed below. These charges are due and payable prior to replacement.

KEY/OPENER/FOB	# ISSUED	AMOUNT	KEY/OPENER/FOB	# ISSUED	AMOUNT
Building Key	1 Fob	$	Apartment Key/FOB	2	$50.00
Mail Key		$ 25.00	Garage Opener and FOB Combo	2	$200.00
Storage Key/FOB		$0.00	GARAGE OPENER	1	$
OTHER: Laundry Card		$	OTHER:		$

Agent and Address for Maintenance Requests and Rent Payments:

Lexington Flats Apartments 2977 Lexington Ave S Eagan, MN 55121	Phone: 651-867-4700 Email: lexingtonflats@VelairManagement.com

Authorized Owner Agent for Service of Process

Velair Property Management, LLC, Attention Debra Godtland
7645 Lyndale Avenue South, Ste. 300
Minneapolis, MN 55423

Additional Agreements:

TERMS OF THIS LEASE:

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EXHIBIT A

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1. **LEASE.** In consideration of the mutual agreements and provisions set forth below, Owner hereby leases to Occupant and Occupant hereby leases from Owner, for a private residence, the Apartment designated above, together with the fixtures and accessories belonging thereto (hereinafter "Apartment") for the above TERM. All parties listed above as "Owner", or "Owner's Agent" and "Occupant" are herein referred to individually and collectively as Owner and Occupant respectively. The TERM Owner shall include all authorized agents, employees, representatives or assigns of the Owner.

2. **TOTAL MONTHLY PAYMENT** Occupant shall, on or before the first day of each month, pay to Owner in advance, at Owner's authorized agent's address indicated above, or such other place as Owner shall from time to time designate, the monthly total charges set forth above, without the requirement of demand or billing. Payments must be received by Owner or Owner's Agent on or before the first day of each month. Payment will be accepted only in the form of a check, money order, or cashier's check given directly to the Community Manager or placed in the rent drop box, otherwise payments must be paid online through the Rent Café system. **Cash or blank money orders will not be accepted.**

   Failure of Occupant to make monthly rent payments or any other charges due, as set forth above, shall constitute a material breach of the lease and result in Owner's right to exercise all of its legal remedies including immediate eviction pursuant to law. Acceptance of partial payments does not waive Owner's right to collect the full amount due.

   Acceptance of partial payment of amounts owed by you will not waive our right to file an eviction action for any remaining owed amounts.

3. **LATE CHARGES.** Occupant agrees to pay Owner the LATE CHARGE on rent not received by the owner by midnight on the 5th day of each month. It is expressly agreed to between Owner and Occupant that acceptance by Owner of less than the full amount due from Occupant does not waive Owners right to recover possession of the rental premises for nonpayment by Occupant of balance owed Owner. Owner reserves the right to adjust the late charge percentage with a sixty (60) day written notice to Occupant.

4. **NSF or CHECKS RETURNED UNPAID.** Occupant understands that if a check is returned to the Owner unpaid for any reason, all applicable LATE CHARGES through the date of redemption and a $30 NSF fee will be assessed. Redemption payments must be certified funds and in the form of a cashier's check or money order. An NSF check constitutes a non-payment of rent and can result in immediate eviction pursuant to law. Owner reserves the right to require that all future payments be in the form of certified funds. Additionally, Owner reserves the right to adjust charges associated with returned checks upon providing a sixty (60) day written notice to Occupant.

5. **RESPONSIBILITY FOR PAYMENT.** Each adult Occupant listed above is JOINTLY AND SEVERALLY responsible for the payment of the total rent and other charges. The total monthly rent for each apartment should be combined into one check, money order, or cashier's check or online rent payment.

6. **CONTINUING DUTY TO PAY AMOUNTS OWED.** Occupant understands and agrees to pay the total rent and other charges for the entire term of this Agreement and any lease which continues after such term expires (as outlined below), including the rent during the two-month notice period (or monetary equivalent) even if this Agreement or Occupant's lease is terminated, Occupant is evicted, or Occupant abandons or surrenders the Apartment.

7. **ACCELERATION.** If Occupant fails to pay any installment of the total charges when they are due, or if any material term of this Agreement is violated or Occupant is evicted by legal proceedings, the entire amount due under this Agreement and any extension thereof of any month-to-month lease (with two-month notice), including charges for the two-month notice period shall become due and payable immediately.

8. **SECURITY DEPOSIT.** Occupant has made a deposit in the amount shown above against any damage beyond reasonable wear and tear done to the Apartment by Occupant, Occupant's family, guests, or agents and due to interruption of service, provided that the repair does not exceed a reasonable timeframe and agrees to pay the full amount of any expenses or damages Owner suffers. Upon termination of Occupant's lease and transfer of possession of the dwelling unit, the deposit and interest earned, if applicable, or notification of disposition will be distributed to Occupant within the amount of time prescribed by law. Amounts for any outstanding balances owed and any amounts required to cover damages to the Apartment beyond normal wear and tear will be deducted from deposits. Occupant understands that if there are damages beyond reasonable wear and tear, Occupant's liability is not limited to the amount of the Security

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Deposit. The Security Deposit will be forfeited and accelerated rent due if occupancy is less than the full lease term and/or proper notice is not given in accordance with item #6 and #26. Occupant may not utilize the security deposit as rent nor shall occupant deduct same from the last month's rent.

9. **OWNER'S DUTIES.** Owner shall deliver the Apartment in a safe, clean and usable condition in compliance with all applicable housing codes. Owner will perform regular inspections of the dwelling unit to ensure that Occupant is properly maintaining the condition of the Apartment and to schedule/perform necessary maintenance repairs or services. Owner shall provide the utilities which have been noted in the "utilities included in rent" on the front page of the lease. Owner shall maintain the mechanical and electrical appliances and facilities. Owner shall not be responsible for damages due to interruption of service, provided that the repair does not exceed a reasonable timeframe, Owner shall not be liable for injury or damage which may result from providing or failing to provide the above listed services.

   At commencement of tenancy or within 14 days of occupancy, landlord must notify tenant of option to request an move-in inspection to identify existing deficiencies in the unit. The landlord and tenant shall schedule the inspection at a mutually acceptable date and time.

   Within a reasonable time after lease termination notice, or before the end of the lease, the landlord shall notify the tenant of the tenant's option to request a move-out inspection and the right to be present at the inspection. The move-out inspection must be completed in a reasonable time but no earlier than five days before the termination date. Landlord and tenant shall attempt to schedule the inspection at a mutually convenient time.

   When a tenant agrees, the landlord may provide written acknowledgment to tenant of photos or videos of the unit and agree to the condition of the unit at the start or end of the tenancy.

10. **OWNER'S RIGHT TO ENTER.** Owner and its authorized agents may enter the Apartment between the hours of 8:00 AM and 8:00 PM with a 24-hour advance notice of the intended entry to inspect, improve, maintain, or repair the Apartment, to do other necessary work or to show the Apartment to potential new residents or buyers or any other reason provided by law. Owner and its authorized agents may enter the unit without giving prior notice in accordance with applicable law when immediate entry is necessary to prevent injury to persons or property because of conditions relating to maintenance, building security, or law enforcement, to determine a tenant's safety, and to comply with state law or local ordinances.

11. **PREMISES DESTROYED, UNINHABITABLE OR UNFIT FOR OCCUPANCY.**
    A. If the Premises is destroyed or becomes totally uninhabitable or completely unfit for occupancy, as determined by Owner, the Owner may immediately terminate this Lease. To terminate the Lease, Owner shall give prompt written notice to the resident. Rent shall be prorated as of the date the Premises became unfit for occupancy.
    B. If the Premises is destroyed or becomes totally uninhabitable or completely unfit for occupancy, as determined by Owner, through the fault or neglect of Occupant or a person under Occupant's direction or control, Owner may end this Lease. Owner shall give prompt written notice to Occupant.

12. **OCCUPANT'S DUTIES.** Occupant shall maintain the Apartment in a safe, sanitary, and presentable condition. Occupant shall immediately notify Owner, in writing, of any problems with or damage to the Apartment or the Apartment Building including all appliances and fixtures. Occupant shall immediately notify Owner, in writing, of any hazardous conditions existing in or about the Apartment premises or conditions which may result in damage to the Apartment premises. Occupant shall not damage or cause waste to the Apartment or Apartment building. Occupant shall reimburse Owner for any and all damage, beyond reasonable wear and tear, to the Apartment or the Apartment building caused by the act or omission of Occupant, Occupant's guests, or visitors. Occupant will comply with all Rules and Regulations set out by Owner. Occupant shall not interfere with the Owner of the property in any way. Occupant shall not use common area utilities (i.e., electric, gas, water) for personal use unless expressly permitted in writing.

13. **OCCUPANT MAINTENANCE AND HOUSEKEEPING.** Occupant is responsible for all Occupant obligations as established by all applicable law including, but not limited to, the removal of trash and garbage from the Apartment to the appropriate collection point and maintaining the Apartment in a clean and sanitary condition. Air conditioning and heating equipment, where and when provided by Owner, will be maintained by Owner although Occupant must pay for any repair required due to Occupant's misuse or neglect. Occupant must not obstruct or place any personal property in front of any air conditioning, heating equipment or vents. Occupant must use plumbing fixtures and facilities, electrical

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systems and other mechanical systems and appliances in the manner designed. Any damage to the Apartment or other areas of the apartment complex caused by Occupant, or any of their guests will be corrected, repaired, or replaced at Occupant's expense. Occupant must immediately notify Owner in writing, or by electronic work order submission via Owner-provided systems, of any needed maintenance or repair. If Owner is required by state, county, local or other government authority to make any repairs or do any corrective maintenance or cleaning that is Occupant's responsibility then those repairs, maintenance or cleaning will be done at Occupant's expense.

14. **MOLD AND MILDEW.** Occupant acknowledges that it is necessary for Occupant to provide appropriate climate control, keep the Unit clean, and take other measures to retard and prevent mold and mildew from accumulating in the Unit. Occupant agrees to clean and dust in the Unit on a regular basis and to remove visible moisture accumulation on windows, walls, and other surfaces as soon as reasonably possible. Occupant agrees not to block or cover any of the heating, ventilation, or air-conditioning ducts in the Unit. Occupant also agrees to immediately report to the Owner office, in writing: (i) any evidence of a water leak or excessive moisture in the Unit, as well as in any storage room, garage or other common area; (ii) any evidence of mold- or mildew-like growth (iii) any failure or malfunction in the heating, ventilation or air conditioning system in the Unit; and (iv) any inoperable doors and windows. Occupant further agrees that Occupant shall be responsible for damage to the Unit and Occupant's property as well as injury to Occupants resulting from Occupant's failure to comply with the terms of the Mold and Mildew policy.

15. **SMOKE DETECTOR/CARBON MONOXIDE DETECTOR NOTICE**: Occupant hereby acknowledges that, the Residence is equipped with one or more smoke detector(s), and carbon monoxide detectors; that you have inspected the detector(s); and that you find it/them to be in proper working condition.

    Upon discovery that a smoke detector and/or carbon monoxide detector is non-functional and requires maintenance, Occupant agrees to **immediately** either provide any maintenance necessary to make the smoke detector/carbon monoxide detector functional or provide owner **written** notification of the required maintenance. For your safety, notify Owner/ownership immediately. Any fines incurred by Owner from City or Governmental agency will be passed onto and become the responsibility of the Occupant in a case where smoke detector/carbon monoxide detector has been tampered with or dismantled.

    Occupant agrees to replace the smoke/carbon monoxide detector(s) battery, if at any time, the existing battery becomes unserviceable. If after replacing the battery, the smoke detector/carbon monoxide detector will not operate or continues to make a "chirping" noise, you must inform Owner immediately in writing of any deficiencies.

    Occupants agree to reimburse Owner, upon request, for the cost of a new smoke and/or carbon monoxide detector and the installation of in the event the existing detector(s) becomes damaged by Occupant or Occupant's guests or invitees.

    Disclaimer:
    YOU ACKNOWLEDGE AND AGREE THAT OWNER OR AGENT IS NOT THE OPERATOR, MANUFACTURER, DISTRIBUTOR, RETAILER OR SUPPLIER OF THE SMOKE AND CARBON MONOXIDE DETECTOR(S). YOU ASSUME FULL AND COMPLETE RESPONSIBILITY FOR ALL RISK AND HAZARDS ATTRIBUTABLE TO, CONNECTED WITH OR IN ANY WAY RELATED TO THE OPERATION MALFUNCTION OR FAILURE OF THE SMOKE AND CARBON MONOXIDE DETECTOR(S), REGARDLESS OF WHETHER SUCH MALFUNCTION OR FAILURE IS ATTRIBUTABLE TO , CONNECTED WITH, OR IN ANY WAY RELATED TO THE USE, OPERATION, MANUFACTURE, DISTRIBUTION, REPAIR, SERVICING, OR INSTALLATION OF SAID SMOKE AND CARBON MONOXIDE DETECTOR(S).

    NO REPRESENTATION, WARRANTIES, UNDERTAKING OR PROMISES, WHETHER ORAL OR IMPLIED, OR OTHERWISE HAVE BEEN MADE BY OWNER, its AGENTS, OR EMPLOYEES TO YOU REGARDING SAID SMOKE AND CARBON MONOXIDE DETECTOR(S), OR THE ALLEGED PERFORMANCE OF THE SAME. OWNER OR AGENT NEITHER MAKES NOR ADOPTS ANY WARRANTY OF ANY NATURE REGARDING SAID DETECTOR(S) INCLUDING EXPRESSED OR IMPLIED WARRANTIES. OWNER OR AGENT SHALL NOT BE LIABLE FOR DAMAGES, LOSSES AND/OR INJURIES TO PERSON(S) OR PROPERTY CAUSED BY (1) YOUR FAILURE TO REGULARLY TEST THE DETECTOR(S); (2) YOUR FAILURE TO NOTIFY OWNER, IN WRITING, OF ANY PROBLEM, DEFECT, MALFUNCTION, OR FAILURE OF THE DETECTOR(S); (3) THEFT OF THE SMOKE AND CARBON MONOXIDE DETECTOR(S) OR ITS SERVICABLE BATTERY; AND/OR (4) FALSE ALARMS PRODUCED BY THE DETECTOR(S).

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16. **SATELLITE DISH OR ANTENNA SYSTEM**. Occupant acknowledges that Satellite Dishes or Antenna Systems may not be installed anywhere on the premises and will not otherwise be provided by Owner.

17. **USE** The use of the Apartment is limited exclusively to the private residence of those persons who are listed on the Application and appear as Occupants on the Agreement as well as any dependents born to or legally adopted by occupant during the term of this Agreement.

    Occupant shall not allow unauthorized persons to occupy Apartment without the express written permission of Owner. Any occupation by any unauthorized persons may subject Occupant to eviction. Occupant shall not perform or permit any practices that are unlawful or may damage the reputation of, or otherwise be injurious to Owner, be disturbing to other Occupants, or be likely to cause an increase in the rate of insurance on the building.

18. **KEYS/FOBS.** All keys/fobs are the property of the Owner and Occupant will not duplicate or in any way give over possession of apartment, building access, garage or other keys or fobs to persons not authorized to occupy the Apartment. If keys or fobs are lost or stolen, Occupant will notify Owner, in writing, immediately. All keys or fobs will be surrendered to Owner upon lease termination. Occupant understands that charges will be assessed for additional keys or fobs requested in writing by Occupant and/or any unreturned keys or fobs. Occupant will not permit any person onto the premises who has been trespassed from the premises.

19. **RESPONSIBILITY FOR PERSONS AND PROPERTY.** Occupant is solely responsible for the safety of Occupant's family and all guests and their respective belongings. Owner is not responsible for any damage or injury that occurs to Occupant or Occupant's guests, or their personal property not caused by the willful or negligent act or omission of Owner. Occupant agrees to hold Owner harmless from and indemnify Owner against any and all liabilities, damages and expense arising from injury, damage or loss to or caused by Occupant, Occupant's family, guests, employees, agents, assigns, sub Occupants, visitors or licensees, or any property of said persons in or about the Apartment buildings or grounds, from any cause whatsoever, growing out of or connected with the use and occupancy of or activities in or about the same. This hold harmless indemnification shall also run in favor of any subsidiaries and employees of Owner.

20. **RENTER'S INSURANCE.** It is recommended that each Occupant carry Renter's Insurance to protect themselves from personal property losses and to protect themselves from liabilities they may create by living in rental property. Occupant understands that the property insurance of the apartment complex does not and cannot protect their personal belongings against damage from: Burglary, Vandalism, Fire, Smoke, Water, Hail, Wind, Heat, Freezing, Lightning strike, Electrical surge or failure, Garage doors, or other peril. Occupant also understands, that by not having Renter's Insurance which covers personal liability insurance, they may be liable to third parties and to the property owner for certain perils which cause damage either to the building property or to another Occupant's quiet enjoyment of their personal property. Occupant understands that Renter's Insurance is readily available and if it is not purchased, the renter is considered "self-insured." Occupant acknowledges and fully understands the options stated above and take full responsibility for their own protection of the complex and the protection of other Occupants.

    INSURANCE CARRIED BY OWNER DOES NOT COVER PERSONAL PROPERTY OF OCCUPANT. OCCUPANT IS STRONGLY ENCOURAGED TO OBTAIN RENTER'S INSURANCE TO PROTECT OCCUPANT AGAINST ANY AND ALL SUCH LOSSES.

21. **SECURITY DISCLAIMER.** Owner does not provide, guarantee, or warrant security. Owner does not represent that the dwelling or apartment community is safe from criminal activity by other Occupants or third parties. The existence of courtesy officers, courtesy patrols, alarm systems, emergency alert buttons, controlled-access vehicle gates, perimeter fences, lighting, or other systems are not a guarantee of personal safety or security, and they are not a guarantee against criminal activity. Owner assumes no duties of security except to proceed with diligence to repair such systems after receiving written notice from Occupant. Owner reserves the right to cancel or reduce any security-related mechanism or personnel listed above, at any time.

22. **PETS.** Occupants are not permitted to have animals or pets of any kind. If an unauthorized animal or pet or evidence thereof is discovered, the Occupant will be required to immediately remove the animal and clean or restore the premises.

    Service animals, companion animals, and therapy animals (all will now be called "assistance animals") are not

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considered pets. If an Occupant wishes to request an assistance animal, the Occupant will review and follow the process to request a reasonable accommodation for an assistance animal. The request must be submitted and approved before the Occupant is allowed to house an assistance animal.

The need for the assistance animal will be verified if the need for the assistance animal is not readily apparent and proper documentation must be executed before an assistance animal is moved into the unit. The Occupant must agree to abide by the Service Animal Lease Rider and House Rules established for Occupants of this property.

23. **WATERBEDS.** Occupant agrees not to keep or permit waterbeds or any other water-filled furniture on the premises, unless written consent of the Owner is obtained, and Occupant is able to provide proof of Renter's Insurance.

24. **WINDOWS AND WINDOW COVERINGS.** Where applicable, the owner/agent has equipped the apartment with window treatments. Occupants may not remove these window treatments. Occupants may not install any new curtains, drapes or any other window covering.

    Windows are not allowed to be nailed and/or in any way permanently shut. Many requirements dictate that window egress (the ability to exit through the window in the event of an emergency) cannot be blocked by any item that is taller than the windowsill.

25. **LIMITS ON ASSIGNMENTS AND SUBLEASES.** No re-renting or other assignment by occupant is allowed, including adding members to the household or lease without prior written approval by owner. Owner may terminate the lease if Occupant attempts to assign or sublease the Apartment.

26. **END OF TERM.** Occupant and Owner shall determine not less than two full calendar months prior to the expiration of their Agreement whether or not the occupancy will continue and upon what terms. Owner may only agree to non-renewal for good cause. Occupant may elect not to continue this occupancy, in which case the Owner must be notified in writing not less than two full calendar months prior to the end of the term, given on the first of the month ("proper notice"). If a new Residency Agreement is not executed, and occupancy is to continue, this Agreement will remain in effect and subject to two full calendar months written notice, on the first of the month subject to all other terms of this Agreement, and may be subject to the addition of a monthly premium to be determined by Owner so that the monthly rent is equal to the max allowable market rent for the Unit. Failure of Owner to notify Occupant of an agreement to renew the Lease, or to notify Occupant of Owners decision not to renew the Lease, within the timeframe set out above does <u>not</u> constitute an acknowledgement that the Lease Term may, or will, continue. The notice requirement of this section shall not apply where this Agreement provides for some lesser notice. Nothing in this paragraph or this lease does or is intended to or should be construed as providing a right by occupant to an additional lease or extended term of any kind beyond the initial term identified on the first page of this lease. If Occupant gives proper notice but abandons or surrenders the Unit prior to the expiration of the proper notice period, Occupant agrees to pay the balance due for the duration of notice period less the amount paid during occupancy. If Occupant does not give proper notice, Occupant agrees to pay the balance due for what should have been the proper notice period. **In addition, if Occupant abandons or surrenders the Unit prior to the expiration of lease term, Occupant agrees to pay the balance due for the duration of the proper notice period <u>plus a fee</u> equal to two-month's rent.**

    Example of Occupant not giving proper notice and surrendering the unit prior to the end of the lease term:
    Current Agreement Expiration Date 10/31/2024
    Occupant Gives Notice 7/15/2024 to move-out on 7/31/2024
    Notice period should have been given on June 1 for 6/2024 and 7/2024
    Because there was no proper notice, the notice period is August and September. The amount due is the balance of rent due for notice period of 8/2024 and 9/2024 plus a fee equivalent to two additional months of total monthly rent because the Occupant also terminated the agreement prior to the end of the lease term.

27. **RELEASE OF INFORMATION.** Occupant understands that periodically, Owner may receive requests for information regarding occupant's rental history, including but not limited to, financial information such as the amount and timeliness of Occupant's rental payments, from such person or entities including, but not limited to, a mortgage company, future Owner, utility company, or creditor. Occupant hereby authorized Owner to release Occupant rental history information to persons or entities requesting such information and release Owner from any and all manner of actions, suits, claims,

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debts, damages, and liability relating to or resulting from Owner action or failure to act in good accordance with this authorization and release. Owner is authorized to communicate directly with anyone listed as an emergency contact person.

28. **LEAD PAINT WARNING AND DISCLOSURE. HOUSING BUILT PRIOR TO 1978.** Housing built before 1978 may contain lead based paint. Lead from paint, paint chips and dust can pose health hazards if not managed properly. Lead exposure is especially harmful to young children and pregnant women. Occupant acknowledges that they have been warned and understand the associated risks.

29. **MILITARY TRANSFER.** If Occupant is or becomes a member of the Armed Forces on extended active duty and receives change of station orders to permanently depart the local area, or is relieved from such active duty, this Occupant may terminate this lease by giving written notice to owner or owner's representative. Such notice shall effectively terminate the lease 30 days after the next rental payment is due. In such event, Occupant agrees to furnish owner a certified copy of the official orders, which warrant termination of the lease. Military permission for base housing does not constitute a permanent change-of-station order. After move-out, such Occupant shall be entitled to the refund of security deposit(s), less lawful deductions.

30. **DEATH OF OCCUPANT OR OTHER HOUSEHOLD CHANGES** In the event of death of the last adult Occupant, this Agreement may be terminated by the Owner or the Occupant's legal representative by submitting written notice of the desired termination date to the other, but in no case shall be more than 30 days from the date of death. Providing that all payments are paid in full through the termination date, all of the deceased Occupant's belongings are removed from the dwelling unit and the unit is cleaned and free of damage, the security deposit will be refunded to the deceased Occupant's estate or legal representative. If the previous conditions are not met, deposits may be applied toward any outstanding balances due and/or damage and cleaning charges in accordance with items #8 and #35.

    Should an occupant pass away or otherwise vacate the unit, the remaining household members must qualify in order to remain in the unit, otherwise the lease terminates within sixty (60) days of the effective date of the change or the expiration of the current lease term, whichever occurs first. All changes in household composition must be approved by Owner prior to the change if known, or otherwise as soon as possible, but in no case less than fourteen (14) days after the change in the event of death or major medical event

31. **Medical Care Facility:** A tenant may terminate the lease if Occupant needs to move into a medical care facility (defined by MN statutes): Nursing home, hospice care or residential hospice facility, boarding care home or supervised living facility, assisted living, accessible unit, state facility, foster care for adults, intensive residential treatment services. A medical professional (Physician, advanced practice registered nurse, or mental health professional defined by MN statute) needs to state the occupant needs to move into medical care facility, and the tenant: Requires assistance with instrumental activities of daily living or personal activities of daily living due to medical reasons or a disability; Meets one of the statutory nursing care facility criteria; or Has a disability or functional impairment in three or more areas under Minn. Stat. 245.462, Subd. 11a, so that self-sufficiency is markedly reduced because of mental illness.

    A lease with more than one adult on it cannot be terminated unless all adults meet the standards in the statute.

    If a tenant requires an accessible unit, and one will be available within two months of the request, lease termination is not allowed.

    When termination is allowed, tenant must give two months' written notice, effective on the last day of a calendar month. Tenant is still responsible for payments up to lease end date and for damages beyond ordinary wear and tear.

32. **DEFAULT AND EVICTIONS.** If Occupant violates any terms of this Agreement, including but not limited to, failure to pay amounts as agreed, chronic late payments or NSF checks (i.e. twice in any 6 month period), improper use of the apartment, failure to maintain the Apartment in a sanitary and safe condition, or any other non-compliance with the Lease or Rules and Regulations, Owner may file terminate the lease and/or file an eviction action in court to regain possession of the premises. **If Occupant is evicted or the lease is terminated for any reason prior to the expiration of lease term, Occupant agrees to pay a fee equal to two-month's rent and any remaining balance due.** Additionally, in the event of any default in payments or of any other obligation in this Agreement, Occupant agrees to reimburse Owner for all reasonable attorneys' fees up to $1,000, court costs, and other costs associated with such default including any

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and all costs of collection or conciliation.

33. **RENT ESCROW/OCCUPANT REMEDIES ACTION.** If the occupant initiates a rent escrow or Occupant remedies action and Owner is the prevailing party in the action occupant is liable for up to $1,000 in costs and attorney fees incurred by Owner.

34. **VACATING.** Upon termination of Occupant's lease and after any renewals or extension thereof, Occupant shall vacate and turn over full possession of the apartment to Owner and return all keys no later than 12:00 noon on the last day of the lease term or vacate date. If surrendered later than noon, Occupant agrees to pay an additional fee of $300.00.

35. **LIMITS ON ACCEPTANCE.** Acceptance of keys to the Apartment shall not constitute an acceptance of the condition of the apartment or cancellation of the monetary obligations under this lease by Owner prior to the expiration of the term of the lease.

36. **CRIME-FREE/DRUG-FREE HOUSING.** In consideration of the execution or renewal of a lease, Owner and Occupant agree as follows:
    A. Occupant, any members of the occupant's household or a guest or other person under the occupant's control shall not engage in illegal activity, including drug-related illegal activity, on the said premises. "Drug-related illegal activity" means the illegal manufacture, sale, distribution, purchase, use or possession with intent to manufacture, sell, distribute, or use of a controlled substance (as defined in Section 102 or the Controlled Substance Act 21 U.S.C. 802) or possession of drug paraphernalia.
    B. Occupant, any member of the occupant's household or a guest or other person under the occupant's control shall not engage in or condone any act intended to facilitate illegal activity, including drug-related illegal activity, on the said premises.
    C. Occupant or members of the household will not permit the dwelling or any part of the property to be used for, or to facilitate illegal activity, including drug-related illegal activity, regardless of whether the individual engaging in such activity is a member of the household.
    D. Occupant or member of the household will not engage in the manufacture, sale, or distribution of illegal drugs on the said premises.
    E. Occupant, any member of the occupant's household, or a guest or other person under the occupant's control shall not engage in acts of violence or threats of violence, including but not limited to the unlawful discharge of firearms, prostitution, criminal street gang activity, intimidation, or any other breach of the rental agreement that otherwise jeopardizes the health, safety or welfare of the Owner, his agents or Occupants.
    F. ANY NON-COMPLIANCE WITH THE ABOVE PROVISIONS SHALL BE GOOD CAUSE FOR TERMINATION OF TENANCY. It is understood and agreed that a single infraction shall be good cause for termination of the lease. Unless otherwise provided by law, proof of infraction shall not require criminal conviction.
    G. A landlord cannot impose a penalty on a tenant or terminate a tenant's lease based on the conduct of the tenant, a household member, or a guest, if that conduct occurs off the premises or curtilage of the premises, unless:
        i. The conduct would constitute a crime of violence against another tenant, the tenant's guest, the landlord, or the landlord's employees (charge or conviction irrelevant); or
        ii. The conduct results in felony conviction of a crime of violence against a person unrelated to the premises (the statute refers to offenses under 624.712, Subd. 5, which include murder, manslaughter, assault, domestic assault, robbery, criminal sexual conduct, arson, and other crimes).

37. **IMMEDIATE EVICTION FOR THREATS OF, OR HARM TO, PERSON OR PROPERTY.** Notwithstanding any other provision of the Agreement, Owner may terminate Occupant's tenancy and evict Occupant, if Occupant, or any household member or guest causes material damage to the Apartment, building or grounds, or threatens, attempts to cause or causes, physical harm to another person or in any way creates a threat to the health or safety of others on or about the apartment premises including but not limited to any employee of owner.

38. **POSSESSION.** Owner shall not be liable for failure to give Occupant possession of the Apartment if such failure is due to factors beyond Owner's control. Occupant shall not be responsible for payment of rent until the Apartment is available to Occupant.

39. **NO ESTOPPEL OR WAIVER.** A waiver of default, delay, or failure to exercise any rights or remedies by the Owner shall

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not constitute a waiver nor impair Owner's continued or future rights or remedies. Owner's consent, permission, or approval of any act of Occupant shall service only as consent, permission or approval of that specific act and shall not serve as consent, permission, or approval of any other past, present, or future acts or as a waiver by Owner to require such consent, permission, or approval. Acceptance of present, future, or past due rent or other charges shall not constitute a waiver of any past, present, or future breach by Occupant of any terms of this agreement.

40. **NO LIMITATIONS OF REMEDIES.** Owner's exercise of any right or remedy shall not impair Owner's right to exercise any additional rights or remedies.

41. **REPRESENTATIONS OF OCCUPANT.** This Lease Agreement is entered into by Owner based upon representations made by Occupant in their rental application, this Agreement or otherwise (including oral representations). If any of the representations are false, misleading, or incomplete in any way, Occupant shall be in breach of this Agreement and Owner may exercise its rights to terminate occupant's lease and evict Occupant.

42. **NOTICES.** Any and all notices required to be made by Occupant must be sent first class, certified mail, or hand delivered to Owner at the above stated address or to such other address or such other place as Owner shall , from time to time, designate. All notices required to be given to Occupant by Owner shall be deemed given when one of the following terms of service is used: mailed to Occupant at the Apartment listed above, passed through the door of the Apartment, left with any adult at the Apartment, emailed to Occupant, or posted on the Apartment door. Any notices provided to Occupant shall not require technical accuracy.

43. **SUBORDINATION.** The Agreement is and shall be subordinated to any present and/or future mortgage debt secured by the premises and Occupant hereby empowers Owner with the authority to execute on behalf of Occupant any and all documents necessary to subordinate this Agreement.

44. **NO ORAL AGREEMENTS.** This Agreement may not be amended or altered by any oral agreement. Any amendments must be in writing and bear the signature of Owner. Additionally, any and all waivers, acceptance and approvals by Owner must be in writing and signed by Owner. Oral waivers, acceptances or approvals shall be ineffective.

45. **BINDING ON HEIRS.** This Agreement shall be binding on the heirs and assigns of both Owner and Occupant. Owner may assign this Agreement.

46. **ABANDONED PROPERTY.** Twenty-Eight (28) calendar days after the Owner has taken back possession of the premises, , the Owner may sell or dispose of any personal property left by Occupant in whatever way the Owner wishes. Prior to a sale, the Owner shall make reasonable efforts to notify the Occupant of the sale at least 14 calendar days prior to the sale, by personal service in writing or sending written notification of the sale by first class and certified mail to the Occupant's last known address or usual place of abode, if known by the Owner, and by posting notice of the sale in a conspicuous place on the premises at least fourteen (14) calendar days prior to the sale. If notification by mail is used, the fourteen (14) calendar day period shall be deemed to start on the day the notices are deposited in the United States mail. Owner is not required to hold and store any perishable food items, animals, or refuse appearing abandoned by the Occupant.

    The owner may use a reasonable amount of the money from the sale to pay for the costs of removing and storing the property and other debts the Occupant owes the owner. Money earned in excess of the owner's costs and Occupant's debts belongs to the occupant, if the Occupant has written and asked for it. If the occupant has asked for the property back before the 28 calendar day waiting period ends, the owner must give the property back.

    The owner must return the Occupant's property within 24 hours after the occupant's written demand, or 48 hours (not counting weekends and Holidays) if the owner has moved the Occupant's property somewhere other than the building.

47. **OCCUPANT(S)** agree to cooperate with the annual re-certification requirement of the Low-Income Housing Tax Credit (LIHTC) program, Tax-Exempt Bond Compliance Program, and/or any other program applicable to the household, building or unit. Occupant acknowledges that the annual recertification of Occupant's household income and student status must meet the limitations imposed by the Program for continued occupancy of the premises.

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48. **INCOME RESTRICTED APARTMENTS**: At Owner's request, occupants of an income-restricted apartment must annually comply with income, family composition and student status certification requirements. Copies of all required income statements, including those furnished after the date of this Lease, shall be attached to and constitute a part of this Lease. If Occupants no longer qualify under the requirements for the apartment, Occupants agree to move within thirty (30) days of notification by Owner, if required by federal regulations.

    Occupant has or will complete and execute an Income Certification Form prior to commencement of the lease term and shall complete and execute further Income Certification Forms at Owner's request at least annually hereafter. Upon request by Owner, Occupant shall recertify Occupant's household income to Owner or any governmental or quasi-governmental agency in a manner satisfactory to Owner and shall complete any and all other certifications and supply further documentation with respect to income and occupancy of the premises as may be reasonably requested by Owner. Failure to provide accurate and timely income certification will constitute a breach of this lease.

49. Occupant agrees that the Rent is based on the area median gross income (AMGI) published by the Federal Department of Housing and Urban Development for this geographic area. Any such rent increase will be made in accordance with all applicable state and local laws. Owner will notify Occupant in writing at least 30 days in advance of such increase.

50. Information Supplied. Occupant hereby certifies that the information supplied by Occupant to Owner that was taken into consideration by Owner in determining Occupant's qualifications to rent the premises, including Occupant's Application, Income Certification and Recertification, is accurate, complete, and true in all respects.

51. Increased Income. If, upon annual recertification, Occupant's household income exceeds 140% of the applicable Program limits, Owner may: (a) increase Occupant's monthly rent to the Maximum Allowable Rent, or (b) move Occupant to a market rate unit. This does not pertain to 100% tax credit properties.

52. Certain Changes. Occupant shall notify Owner immediately in writing if Occupant's household size changes and/or Occupant become(s) a full-time student. If Occupant becomes a full-time student, the Occupant or household may not qualify for tax credit housing.

53. Accessible Units. If the Apartment is accessible and neither Occupant nor any member of Occupant's household is disabled, Owner may require Occupant to relocate to a non-accessible unit upon at least ten (10) days written notice if (a) a non-accessible unit to which Occupant may relocate is available, at the same rent, and this unit is suitable for Occupant and (b) a disabled Occupant or Applicant wishes to lease the Apartment.

54. JUST CAUSE NOTICE: The following notice applies only to certain residential rental properties located in the City of Saint Paul, MN. Owner provides, and Tenant acknowledges, the following Just Cause Notice as required by the City of Saint Paul Ordinance 20-14; Sec. 193.05 (b).

    The landlord under this lease shall not unilaterally terminate or attempt to terminate the tenancy of any tenant unless the landlord can prove in court that Just Cause exists. The reasons for Termination of Tenancy listed in the City of Saint Paul's Just Case Notice (Sec. 193.05), and not others, shall constitute Just Cause under this provision.

    AGREEMENT AND ATTACHMENTS. Owner and Occupant agree that certain additional documents relating to this lease exist and form a legally binding part of this Agreement. The additional documents are as noted and acknowledged below and with this lease constitute the entire Agreement between Owner and Occupant. Both Occupant and Owner agree that if any part of the Agreement is found to be illegal or invalid, all other terms of the Agreement shall continue and both parties shall continue to be bound by them. No oral agreements have been entered into. In the event any discrepancy occurs between this lease and another legally binding part of this Agreement, the more stringent provision shall apply.

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I/We acknowledge that upon signing this lease, I/We have received a copy of the following documents:

Occupant Initials:

	Lease
	House Rules
	Low Income Housing Tax Credit Lease Rider
	VAWA Addendum
N/A	Pet Policy Agreement/Addendum (If Applicable)
	Garage/Storage Locker Addendum (If applicable)
N/A	Concession Addendum (If Applicable)
	Non-Smoking addendum (If Applicable)
N/A	Lead Based Paint Disclosure and EPA Booklet (If Applicable)
N/A	Other:

BY SIGNING THIS DOCUMENT, I ACKNOWLEDGE THAT I HAVE READ THIS LEGALLY BINDING AGREEMENT IN ITS ENTIRETY (LEASE AND APPLICABLE ADDENDA) AND UNDERSTAND AND AGREE TO COMPLY WITH THE TERMS THEREOF. FURTHERMORE, I UNDERSTAND THAT ANY VIOLATIONS OF THE TERMS CONSTITUTES AN INFRACTION OF THE AGREEMENT AND MAY RESULT IN TERMINATION OF THIS AGREEMENT, NON-RENEWAL, AND/OR EVICTION FROM THE APARTMENT. A COPY OF THE EXECUTED AGREEMENT HAS BEEN PROVIDED BY OWNER.

OCCUPANT 10-25-24 DATE OCCUPANT DATE

OCCUPANT 10-25-24 DATE OCCUPANT DATE

OCCUPANT DATE OCCUPANT DATE

VELAIR PROPERTY Management LLC, OWNER'S AGENT 11/3/24 DATE

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House Rules

RESIDENT CERTIFICATION

I have read and received a copy of the House Rules. I understand that these rules are an extension of my lease and that any violation of these rules may be grounds for lease termination.

Dena Sazama
Resident Name (please print)

Resident Signature — Date: 10-25-24

Bradley Crowe
Resident Name (please print)

Resident Signature — Date: 10-25-24

Resident Name (please print)

Resident Signature — Date

Resident Name (please print)

Resident Signature — Date

Resident Name (please print)

Resident Signature — Date

Management Representative — Date: 11/3/24

Lexington Flats
Apartment Community Name

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MINNESOTA HOUSING

LOW INCOME HOUSING TAX CREDIT LEASE RIDER
(attach to resident lease)

Property Name: Lexington Flats

Building/Unit #: 104 - 2077 Lexington Ave S.

Head of Household Name: Dena Sazama

The Lease dated 11/01/2024 is hereby amended by adding the following provisions:

1. Owner/Landlord may not evict or terminate the tenancy (including refusing to renew this Lease) except for good cause. Good cause means (a) serious or repeated violation(s) of the material terms and conditions of the Lease. Any eviction, lease non-renewal or termination of tenancy notice must be in writing and must state the specific violation(s). The notice must comply with all requirements of Minnesota law and other applicable programs.
2. Owner/Landlord may not increase the lease rent more than once annually, regardless of the term of the Lease.

To the extent that any terms contained in the Lease or any other agreement between the owner and the tenant contradict the terms of this Lease Rider, the provisions of this Lease Rider shall control.

By signing below, I indicate my consent to this Lease Rider:

Kim Hesselbach — Kim Hesselbach — 11/3/24
Property Representative Name (print) (signature) Date

****

By signing below, I indicate my consent to this Lease Rider. I/we have been given a copy of this Lease Rider.

Dena Sazama — D. Sazama — 10-24-24
Resident Name (print) (signature) Date

Bradley Crowe — [signature] — 10-24-24
Resident Name (print) (signature) Date

Resident Name (print) (signature) Date

Resident Name (print) (signature) Date

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VIOLENCE, DATING VIOLENCE OR STALKING

U.S. Department of Housing and Urban Development
Office of Housing

OMB Approval No. 2502-0204
Exp. 6/30/2017

LEASE ADDENDUM

VIOLENCE AGAINST WOMEN AND JUSTICE DEPARTMENT REAUTHORIZATION ACT OF 2005

TENANT	LANDLORD	UNIT NO. & ADDRESS
Dena Sazama	Lexington Flats	2977 Lexington Avenue S # 104 St. Paul, MN 55109

This lease addendum adds the following paragraphs to the Lease between the above reference Tenant and Landlord.

Purpose of the Addendum

The lease for the above referenced unit is being amended to include the provisions of the Violence Against Women and Justice Department Reauthorization Act of 2005 (VAWA).

Conflicts with Other Provisions of the Lease

In case of any conflict between the provisions of this Addendum and other sections of the Lease, the provisions of this Addendum shall prevail.

Term of the Lease Addendum

The effective date of this Lease Addendum is 11/01/2024. This Lease Addendum shall continue to be in effect until the Lease is terminated.

VAWA Protections

1. The Landlord may not consider incidents of domestic violence, dating violence, or stalking as serious or repeated violations of the lease or other "good cause" for termination of assistance, tenancy, or occupancy rights of victims of abuse.
2. The Landlord may not consider criminal activity directly relating to abuse, engaged in by a member of a Tenant's household or any guest or other person under the Tenant's control, cause for termination of assistance, tenancy, or occupancy rights if the Tenant or an immediate member of the Tenant's family is the victim or threatened victim of that abuse.
3. The Landlord may request in writing that the victim, or a family member on the victim's behalf, certify that the individual is a victim of abuse and that the Certification of Domestic Violence, Dating Violence or Stalking, Form HUD-91066, or other documentation as noted on the certification form, be completed and submitted within 14 business days, or an agreed upon extension date, to receive protection under the VAWA. Failure to provide the certification or other supporting documentation within the specified timeframe may result in eviction.

Dena Sazama — Tenant — Date 10/24/24

Landlord — Date 11/8/24

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VIOLENCE, DATING VIOLENCE OR STALKING

U.S. Department of Housing and Urban Development
Office of Housing

OMB Approval No. 2502-0204
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Bradley Crowe	Lexington Flats	2977 Lexington Avenue S # 104 St. Paul, MN 55109

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2. The Landlord may not consider criminal activity directly relating to abuse, engaged in by a member of a Tenant's household or any guest or other person under the Tenant's control, cause for termination of assistance, tenancy, or occupancy rights if the Tenant or an immediate member of the Tenant's family is the victim or threatened victim of that abuse.
3. The Landlord may request in writing that the victim, or a family member on the victim's behalf, certify that the individual is a victim of abuse and that the Certification of Domestic Violence, Dating Violence or Stalking, Form HUD-91066, or other documentation as noted on the certification form, be completed and submitted within 14 business days, or an agreed upon extension date, to receive protection under the VAWA. Failure to provide the certification or other supporting documentation within the specified timeframe may result in eviction.

Tenant — Date: 10/24/24

Landlord — Date: 11/3/24

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VELAIR PROPERTY MANAGEMENT

SMOKE-FREE LEASE ADDENDUM

Tenant and all members of Tenant's family or household are parties to a written lease with Landlord (the Lease). This Addendum states the following additional terms, conditions, and rules which are hereby incorporated into the Lease.

A breach of this Lease Addendum shall give each party all the rights contained herein, as well as the rights in the Lease.

1. **Purpose of No-Smoking Policy.** The parties desire to mitigate (i) the irritation and known health effects of secondhand smoke; (ii) the increased maintenance, cleaning, and redecorating costs from smoking; (iii) the increased risk of fire from smoking; and (iv) the higher costs of fire insurance for a non-smoke-free building.

2. **Definition of Smoking.** The term "smoking" means inhaling, exhaling, breathing, or carrying any lighted cigar, cigarette, e-cigarette, or other tobacco product or similar lighted product in any manner or in any form.

3. **Smoke-Free Complex.** Tenant agrees and acknowledges that the premises to be occupied by Tenant and members of Tenant's household have been designated as a smoke-free living environment except in designated smoking areas as indicated by Management. Tenant and members of Tenant's household shall not smoke anywhere in the unit rented by Tenant, the building where the Tenant's dwelling is located, or in any common area or other part of the rental community, nor shall Tenant permit any guests or visitors under the control of Tenant to do so.

4. **Tenant to Promote No-Smoking Policy and to Alert Landlord of Violations.** Tenant shall inform guests of the no-smoking policy. Further, Tenant shall promptly give Landlord a written statement of any incident where tobacco smoke is migrating into the Tenant's unit from sources outside of the Tenant's apartment unit.

5. **Landlord to Promote No-Smoking Policy.** Landlord shall post no-smoking signs at entrances and exits, common areas, hallways, and in conspicuous places adjoining the grounds of the apartment complex.

6. **Landlord Not a Guarantor of Smoke-Free Environment.** Tenant acknowledges Landlord's adoption of a smoke-free living environment and effort to designate the apartment complex as smoke-free, do not make the Landlord or Managing Agent the guarantor of Tenant's health or the smoke-free condition of the Tenant's unit and the common areas. However, Landlord shall take reasonable steps to enforce the smoke-free condition of the Tenant's unit and the common areas. Landlord is not required to take steps in response to smoking unless Landlord has been given written notice of said smoking or has other credible and reliable evidence of the source of unauthorized smoking.

7. **Other Tenants are Third-Party Beneficiaries of Tenant's Agreement.** Tenant agrees that the other Tenants at the complex are third-party beneficiaries of Tenant's Smoke-Free Addendum agreements with Landlord. This means that Tenant's commitments in this Addendum are made to other Tenants as well as to Landlord. A Tenant may sue another Tenant for an injunction to prohibit smoking or for damages but does not have the right to evict another Tenant. Any suit between Tenants herein shall not create a presumption that the Landlord breached this Addendum.

8. **Effect of Breach and Right to Terminate Lease.** A breach of this Lease Addendum shall give each party all rights contained herein, as well as the rights in the Lease. A material breach of this Addendum shall be a material breach of the Lease and ground for immediate termination of the Lease by the Landlord.

9. **Disclaimer by Landlord.** Tenant acknowledges Landlord's adoption of a smoke-free living environment and the efforts to designate the rental complex as smoke-free do not, in any way, change the standard of care the Landlord or Managing Agent would have to a Tenant household to render buildings and premises designated as smoke-free any

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safer, more habitable, or improved in terms of air quality standards than any other premises. Landlord specifically disclaims any implied or express warranties that the building, common areas, or Tenant's premises will have any higher or improved air quality standards than any other rental property. Landlord cannot and does not warranty or promise that the rental premises or common areas will be free from secondhand smoke. Tenant acknowledges that Landlord's ability to police, monitor, or enforce the agreements of this Addendum is dependent in significant part on voluntary compliance by Tenant and Tenant's guests. Tenants with respiratory ailments, allergies, or any other physical or mental condition relating to smoke are put on notice that Landlord does not assume any higher duty of care to enforce this Addendum than any other Landlord obligation under the Lease.

10. **Acknowledgement and Transition.** Resident acknowledges that this Smoke-Free Addendum has become a requirement at an apartment community where smoking has been permitted in the past. Resident acknowledges that the terms and conditions of this Smoke-Free Lease Addendum do not presently apply to all households in the apartment community and some tenants, their family members, and guess, will continue to have the right to smoke in the apartment until the end of their lease term. Landlord agrees, however, to take reasonable steps to require all residents under term leases to sign new leases at the time of lease renewal that contain this Smoke-Free Lease Addendum.

Signatures

Owner's Agent:

Occupant(s):

Diana Sargent

Date: 11/3/24

Date: 10/29/24 / 10/24/2024

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Signatures

Owner's Agent:

Date: 8/15/23

Occupant(s):

Dena Sapano

Date: 8·15·23

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VELAIR
PROPERTY MANAGEMENT

Garage/Parking and Storage Locker Lease Rider

Property: Lexington Flats
Resident Name: Dena Sazama
Resident Name:

Unit Number: 104
Resident Name: Bradley Crowe
Resident Name:

Lease Term Information:

Garage Assigned Stall:	1	Garage Assigned Stall:		Storage Locker Number:	
Monthly Rent Amount:	0.00	Monthly Rent Amount:		Monthly Rent Amount:	0.00
Start Date:	11/01/2024	Start Date:		Start Date:	
End Date:	10/31/2025	End Date:		End Date:	

Vehicle Information:

Type		Type		Type	
Make		Make		Make	
Model		Model		Model	
Year		Year		Year	
Color		Color		Color	
License Plate		License Plate		License Plate	
Car Insurer		Car Insurer		Car Insurer	
Policy #		Policy #		Policy #	

☑ At this time, I don't have a vehicle. I/we expressly acknowledge per the House Rules, Velair Property Management requires a registered, and insured vehicle before being assigned a garage stall or to park at the property on the surface lot.

☐ At this time, I do have a registered and insured vehicle, however, I opt out of the assignment of a parking stall.

- All garage and/or storage rent is due on or before the first of each month. A late fee as specified in your apartment lease agreement is due and payable if rent is not paid in full.
- Resident understands and agrees to pay rent for the entire lease term of the agreement and any lease term, which continues after such term expires.
- Resident understands the garage is for the sole purpose of vehicle storage. Storage of personal items and repairs to vehicle are prohibited.
- Management is not responsible for damage or theft of any vehicle/item stored in garage, on the surface lot, or storage space.
- Resident understands that all parking stalls are subject to reassignment during the term of the lease at the discretion of Velair Property Management, or Ownership.

10-25-24
Occupant Date Occupant Date

Dena Sazama 10-25-24
Occupant Date Occupant Date

11/3/24
Authorized Owner Representative Date

TRUE & CORRECT as of 11-1-24
11-1-24

EQUAL HOUSING OPPORTUNITY

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Mutual Lease Termination Agreement

This letter serves as confirmation that **Dena Sazama and Bradley Crowe** and the landlord/property management have mutually agreed to terminate the lease agreement for the residence located at:

2977 Lexington Ave S, Apt 104, Eagan, MN 55121

Effective Date: October 31, 2025

As part of this agreement:

- Dena Sazama and Bradley Crowe agree to vacate the unit by October 31, 2025.
- Any personal belongings left in the unit after this date will be considered abandoned and subject to disposal.
- A full amount of **$1218** will be paid for the months of September and October.
- The security deposit is to be returned to that **Dena Sazama and Bradley Crowe.**
- Both parties agree to the terms outlined above and acknowledge this agreement serves as a mutual release from further lease obligations after the specified date.

Name: Dena Sazama

Tenant Signature: _____ **Date:** _____

Name: Bradley Crowe

Tenant Signature: _____ **Date:** _____

Property Manager Signature: _____ **Date:** _____

MINNESOTA JUDICIAL BRANCH

EXHIBIT B

Filed in District Court
State of Minnesota
11/17/2025 6:11 PM

U.S. Department of Housing and Urban Development
OMB Approval No. 2577-0286
Exp. 1/31/2028

CERTIFICATION OF DOMESTIC VIOLENCE, DATING VIOLENCE, SEXUAL ASSAULT, OR STALKING

Confidentiality Note: Any personal information you share in this form will be maintained by your covered housing provider according to the confidentiality provisions below.

Purpose of Form: If you are a tenant of or applicant for housing assisted under a covered housing program, or if you are applying for or receiving transitional housing or rental assistance under a covered housing program, and ask for protection under the Violence Against Women Act ("VAWA"), you may use this form to comply with a covered housing provider's request for written documentation of your status as a "victim". This form is accompanied by a "Notice of Occupancy Rights Under the Violence Against Women Act," Form HUD-5380.

VAWA protects individuals and families regardless of a victim's age or actual or perceived sexual orientation, gender identity, sex, or marital status.

You are not expected **and cannot be asked or required** to claim, document, or prove victim status or VAWA violence/abuse other than as stated in "Notice of Occupancy Rights Under the Violence Against Women Act," Form HUD-5380.

This form is **one of your available options** for responding to a covered housing provider's written request for documentation of victim status or the incident(s) of VAWA violence/abuse. If you choose, you may submit one of the types of third-party documentation described in Form HUD-5380, in the section titled, "What do I need to document that I am a victim?". Your covered housing provider must give you at least 14 business days (weekends and holidays do not count) to respond to their written request for this documentation.

Will my information be kept confidential? Whenever you ask for or about VAWA protections, your covered housing provider must keep any information you provide about the VAWA violence/abuse or the fact you (or a household member) are a victim, including the information on this form, strictly confidential. This information should be securely and separately kept from your other tenant files. This information can only be accessed by an employee/agent of your covered housing provider if (1) access is required for a specific reason, (2) your covered housing provider explicitly authorizes that person's access for that reason, **and** (3) the authorization complies with applicable law. This information will not be given to anyone else or put in a database shared with anyone else, unless your covered housing provider (1) gets your written permission to do so for a limited time, (2) is required to do so as part of an eviction or termination hearing, **or** (3) is required to do so by law.

In addition, your covered housing provider must keep your address strictly confidential to ensure that it is not disclosed to a person who committed or threatened to commit VAWA violence/abuse against you (or a household member).

What if I require this information in a language other than English? To read this in Spanish or another language, please contact [; FOR HOPWA PROVIDERS – or go to . You can read translated VAWA forms at https://www.hud.gov/program_offices/administration/hudclips/forms/hud5a#4. If you speak or read in a language other than English, your covered housing provider must give you language assistance regarding your VAWA protections (for example, oral interpretation and/or written translation).

Can I request a reasonable accommodation? If you have a disability, your covered housing provider must provide reasonable accommodations to rules, policies, practices, or services that may be necessary to allow you to equally benefit from VAWA protections (for example, giving you more time to submit documents or assistance with filling out forms). You may request a reasonable accommodation at any time, even for the first time during an eviction. If a provider is denying a specific reasonable accommodation because it is not reasonable, your

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covered housing provider must first engage in the interactive process with you to identify possible alternative accommodations. Your covered housing provider must also ensure effective communication with individuals with disabilities.

Need further help? For additional information on VAWA and to find help in your area, visit https://www.hud.gov/vawa. To speak with a housing advocate, contact

TO BE COMPLETED BY OR ON BEHALF OF THE VICTIM OF DOMESTIC VIOLENCE, DATING VIOLENCE, SEXUAL ASSAULT, OR STALKING

1. **Name(s) of victim(s):** _____

2. **Your name** (*if different from victim's*): _____

3. **Name(s) of other member(s) of the household:** _____

   _____

4. **Name of the perpetrator** *(if known and can be safely disclosed):*_____

5. **What is the safest and most secure way to contact you? (You may choose more than one.)**

   If any contact information changes or is no longer a safe contact method, notify your covered housing provider.

   ☐ Phone Phone Number: _____

   Safe to receive a voicemail: ☐ Yes ☐ No

   ☐ E-mail E-mail Address:_____

   Safe to receive an email: ☐ Yes ☐ No

   ☐ Mail Mailing Address:_____

   Safe to receive mail from your housing provider: ☐ Yes ☐ No

   ☐ Other Please List:_____

6. **Anything else your housing provider should know to safely communicate with you?**

   _____
   _____
   _____
   _____
   _____

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Applicable definitions of domestic violence, dating violence, sexual assault, or stalking:

Domestic violence includes felony or misdemeanor crimes of violence committed by a current or former spouse or intimate partner of the victim, by a person with whom the victim shares a child in common, by a person who lives with or has lived with the victim as a spouse or intimate partner, by a person similarly situated to a spouse of the victim under the domestic or family violence laws of the jurisdiction, or by any other person against an adult or youth victim who is protected from that person's acts under the domestic or family violence laws of the jurisdiction.

Spouse or intimate partner of the victim includes a person who is or has been in a social relationship of a romantic or intimate nature with the victim, as determined by the length of the relationship, the type of the relationship, and the frequency of interaction between the persons involved in the relationship.

Dating violence means violence committed by a person:

(1) Who is or has been in a social relationship of a romantic or intimate nature with the victim; **and**

(2) Where the existence of such a relationship shall be determined based on a consideration of the following factors: (i) The length of the relationship; (ii) The type of relationship; and (iii) The frequency of interaction between the persons involved in the relationship.

Sexual assault means any nonconsensual sexual act proscribed by Federal, tribal, or State law, including when the victim lacks capacity to consent.

Stalking means engaging in a course of conduct directed at a specific person that would cause a reasonable person to:

(1) Fear for the person's individual safety or the safety of others **or**

(2) Suffer substantial emotional distress.

Certification of Applicant or Tenant: By signing below, I am certifying that the information provided on this form is true and correct to the best of my knowledge and recollection, and that one or more members of my household is or has been a victim of domestic violence, dating violence, sexual assault, or stalking as described in the applicable definitions above.

_____ _____

Signature **Date**

Public Reporting Burden for this collection of information is estimated to average 20 minutes per response. This includes the time for collecting, reviewing, and reporting. Comments concerning the accuracy of this burden estimate and any suggestions for reducing this burden can be sent to the Reports Management Officer, QDAM, Department of Housing and Urban Development, 451 7th Street, SW, Washington, DC 20410. Housing providers in programs covered by VAWA may request certification that the applicant or tenant is a victim of VAWA violence/abuse. A Federal agency may not collect this information, and you are not required to complete this form, unless it displays a currently valid Office of Management and Budget control number.

MINNESOTA JUDICIAL BRANCH